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### **RFQ #19PM0726Q0009**

### **VENUE DECORATION SERVICES FOR THE USA INDEPENDENCE DAY 250<sup>th</sup> ANNIVERSARY CELEBRATION**

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**SECTION 1 - THE SCHEDULE**  
**CONTINUATION TO SF-1449, RFQ NUMBER 19PM0726Q0009**  
**PRICES, BLOCK 23**

1. **PERFORMANCE WORK STATEMENT**

- A.** The Contractor shall provide decorations and other services for the United States Embassy Panama's for the USA Independence Day 250th Anniversary Celebration to be held on July 2, 2026 (Event), including furnishing all labor, material, equipment, and services. The price listed below shall include all labor, materials, insurance (see FAR 52.228-4 and 52.228-5), overhead, and profit.
- B.** The Government will pay the Contractor the firm-fixed price for the non-personal service contract described in the Scope of work.
- C.** Location and Time:
- Place: Biomuseo, Panama City, Panama.
  - Event date: Thursday, July 2, 2026.
  - Time: From 7:00pm to 12:00am.
- D.** Services provided shall include the following deliverables:
- Deliverables for CLIN 001– Decoration Services
  - Deliverables for CLIN 002 – Decoration of Food and Beverage Stations
  - Deliverables for CLIN 003 – Furniture / Furnishings
  - Deliverables for CLIN 004 – Portable Restrooms
  - Deliverables for CLIN 005 – Tents, Carpeting and Flooring
  - Deliverables for CLIN 006 – Fireworks
  - Deliverables for CLIN 007 – Lighting and Electrical
  - Deliverables for CLIN 008 – Labor and Installation
  - Deliverables for CLIN 009 – Additional Services/Other Costs
- E.** All prices should be in U.S. Dollars.

2. PRICING

|                                                                                                                                                                                      |            |             |                   |                  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-------------|-------------------|------------------|
| <b>Standard Services</b>                                                                                                                                                             |            |             |                   |                  |
| <b>CLIN 001 – Decoration Services</b>                                                                                                                                                |            |             |                   |                  |
| <b>Description</b>                                                                                                                                                                   | <b>QTY</b> | <b>UOM</b>  | <b>Unit Price</b> | <b>Sub-Total</b> |
| Decoration services, including drapery, decorative fixtures, floral arrangements and dressing of event spaces (El Salon, Terraza, Prado del Canal) and structures). (Refer to SOW) * | 1          | all         | \$                | \$               |
| <b>CLIN 002 – Decoration of Food and Beverage Stations</b>                                                                                                                           |            |             |                   |                  |
| <b>Description</b>                                                                                                                                                                   | <b>QTY</b> | <b>UOM</b>  | <b>Unit Price</b> | <b>Sub-Total</b> |
| Install and set up the food and beverage stations, including decorations aligned with the event theme. (Refer to SOW). *                                                             | 1          | all         | \$                | \$               |
| <b>CLIN 003 – Furniture / Furnishings</b>                                                                                                                                            |            |             |                   |                  |
| <b>Description</b>                                                                                                                                                                   | <b>QTY</b> | <b>Unit</b> | <b>Unit Price</b> | <b>Sub-Total</b> |
| Including tables, cocktail tables, lounge seating, side tables, bar stations, and related furnishings. (Refer to SOW). *                                                             | 1          | all         | \$                | \$               |
| <b>CLIN 004 – Portable Restrooms</b>                                                                                                                                                 |            |             |                   |                  |
| <b>Description</b>                                                                                                                                                                   | <b>QTY</b> | <b>Unit</b> | <b>Unit Price</b> | <b>Sub-Total</b> |
| Climate-controlled, luxury-style portable restrooms that include hand-washing sinks.                                                                                                 | 2          | each        | \$                | \$               |
| Single portable restrooms with interior accompanying handwashing stations.                                                                                                           | 4          | each        | \$                | \$               |
| <b>CLIN 005 – Tents, Cooling Solution, Carpeting and Flooring</b>                                                                                                                    |            |             |                   |                  |
| <b>Description</b>                                                                                                                                                                   | <b>QTY</b> | <b>Unit</b> | <b>Unit Price</b> | <b>Sub-Total</b> |
| Large, air-conditioned, transparent tent (approximately 15m × 18m) with integrated interior lighting and hard flooring. *                                                            | 1          | each        | \$                | \$               |
| Transparent tent (6m × 12m) with cooling solution and integrated interior lighting for the “Roaring Twenties Lounge.” *                                                              | 1          | each        | \$                | \$               |
| <b>CLIN 006 – Fireworks</b>                                                                                                                                                          |            |             |                   |                  |
| <b>Description</b>                                                                                                                                                                   | <b>QTY</b> | <b>Unit</b> | <b>Unit Price</b> | <b>Sub-Total</b> |
| Waterproof fireworks at Veracruz (9-minute display) Refer to SOW for specs.                                                                                                          | 1          | all         | \$                | \$               |
| <b>CLIN 007 – Lighting and Electrical</b>                                                                                                                                            |            |             |                   |                  |
| <b>Description</b>                                                                                                                                                                   | <b>QTY</b> | <b>Unit</b> | <b>Unit Price</b> | <b>Sub-Total</b> |
| Provide as needed for decoration setup, if applicable.                                                                                                                               | 1          | all         | \$                | \$               |
| <b>CLIN 008 – Labor and Installation</b>                                                                                                                                             |            |             |                   |                  |
| <b>Description</b>                                                                                                                                                                   | <b>QTY</b> | <b>Unit</b> | <b>Unit Price</b> | <b>Sub-Total</b> |
| Delivery, setup, on-site staffing, and breakdown.                                                                                                                                    | 1          | all         | \$                | \$               |
| <b>CLIN 009 – Additional Services/Other Costs</b>                                                                                                                                    |            |             |                   |                  |
| <b>Description</b>                                                                                                                                                                   | <b>QTY</b> | <b>Unit</b> | <b>Unit Price</b> | <b>Sub-Total</b> |
| Contractor shall identify, itemize, and include in its proposal any additional services or costs not captured in the SOW.                                                            | 1          | all         | \$                | \$               |
| <b>Grand Total</b>                                                                                                                                                                   |            |             |                   | <b>\$</b>        |

\* Offerors shall provide a separate detailed cost breakdown (disaggregated pricing) for all line items (CLINs) marked with an asterisk (\*), as part of their price proposal submission.

**VALUE ADDED TAX.**

Value Added Tax (VAT) is not applicable to this contract and shall not be included in the CLIN rates or Invoices because the U.S. Embassy has a tax exemption certificate from the host government.

**CONTINUATION TO SF-1449, RFQ NUMBER 19PM0726Q0009**  
**SCHEDULE OF SUPPLIES/SERVICES, BLOCK 20**  
**DESCRIPTION/SPECIFICATIONS/WORK STATEMENT**

**I. STATEMENT OF WORK**

The U.S. Embassy Panama will host its USA Independence Day 250th Anniversary Celebration on July 2, 2026, and is seeking a contractor to provide event support services, including decorations services, cocktail hall furnishings, drapery, chandeliers, bar and catering stations décor, fireworks, tents, portable restrooms, red carpets, and climate-controlled systems. The celebration will bring together distinguished guests to commemorate U.S. Independence Day while highlighting the strong bond between the Government of the United States and the Government of Panama, as well as the close relationship between the U.S. Embassy and the many dedicated expatriates, non-governmental institutions, and business partners in Panama.

The contractor shall provide all personnel, equipment, supplies, facilities, tools, materials, supervision, and non-personal services necessary to perform the support as defined in this SOW.

After the contractor is selected and awarded, the Embassy contracting officer (Embassy CO) and the Contractor's point of contact (Contractor POC) will discuss the statement of work (SOW) and Contract requirements, including deliverable products, delivery schedules, special contract clauses, quality control/assurance procedures, invoicing and billing procedures, local regulations, or access requirements, and/or environmental, safety and health requirements.

Additionally, the Contractor POC shall meet weekly with designated Embassy points of contact (Embassy POCs) for updates and to review contractor performance.

Date and time for the event:

- Date: Thursday, July 2, 2026.
- Time: From 7:00pm to 12:00am.
  - Order of the Event (approximate)
    - 7:00 pm: Reception, cocktail, and food service begins
    - 7:45 pm: Ceremony begins
    - 9:30 pm: Fireworks
    - 10:00 pm: Reception continues
    - 12:00 am: Event concludes

**1. General information:**

- 1.1. Event Location (Venue): The Event will be held in the Biomuseo's event space (the Captain's Club and surrounding gardens). A map of the Venue is found as an annex to this SOW. Prospective Offerors will be able to visit the Event space with Embassy POCs at a designated date and time.
- 1.2. Nature of the Event: The Event will celebrate the 250th anniversary of the founding of the United States of America. It is also the flagship event of the Embassy's Freedom 250 campaign with distinguished guests to recognize the strong ties between the U.S. Government and the Government of Panama, and between the U.S. Embassy and the many dedicated expatriates in non-governmental organizations and businesses.

- 1.3. Event Theme: The Event theme is “**The Golden Age and American Greatness Through the Eras**” (Theme). The Event should include unique, high-end decor that reflects sophistication, glitz, and glamor.
- 1.4. Event Spaces (Reference event space layout in the annex)
  - 1.4.1. Indoor Area: The main protocol ceremonial act will take place in this area.
  - 1.4.2. *El Salon del Biomuseo*, 600 m2, maximum capacity 400 people in cocktail setup, space includes three internal female and male restrooms.
    - 1.4.2.1. This space will include a pre-installed 7m x 4m main stage and a press riser for media coverage (measurement to be determined).
    - 1.4.2.2. *Terraza del Canal*, 215 m2, maximum capacity 200 people in cocktail setup, roofed area with open airflow, external restrooms include four female and male restrooms.
  - 1.4.3. Outdoor Area: The main live music acts will take place in this area.
    - 1.4.3.1. *Prado del Canal*, 620 m2, maximum capacity 300 people in cocktail setup
    - 1.4.3.2. This space will include a pre-installed 7m x 4m stage for the entertainment act (outdoor stage).
    - 1.4.3.3. *Higueron*, 200m2, maximum capacity 150 people. (This space is reserved with intended limited use due to weather probability)
- 1.5. Check-in Areas: Two check-in areas should be provided outside of the Venue, one for VIP guests and one for other regular guests.
  - 5.1 Parking Areas: On-site parking shall be provided for VIP guests. Other guests and service providers shall park in a nearby public lot and use an authorized shuttle provided by the Embassy to the venue.
- 1.6. Objectives:
  - 6.1 Commemorate 250 years of United States history and its greatness through the eras.
  - 6.2 Strengthen United States-Panama ties, showcasing the very best of American and Panamanian culture.
- 1.7. Scope: A provider that fulfills the following prominent characteristics for decorations and other specified accommodations and services for approximately 800 guests.

## 2. Furnishing & Decorations:

- 2.1. Proposals:
  - 2.1.1. The Proposal should include a specific or equal set of options for high-quality decorations and furnishing, including but not limited to fabrics, furnishing, drapery, chandeliers, bar stations, catering stations, fireworks, tents, portable restrooms, red carpets, and climate-controlled systems.
  - 2.1.2. Disaggregate all line-item costs, including flowers, furniture, drapery, curtains, bar stations, chandeliers, catering stations, tablecloths, Roaring Twenties lounge setups, fireworks, tents, portable restrooms, red carpet, and climate-controlled systems.
  - 2.1.3. Offerors must also include the following:
    - ✓ Multiple renderings of their vision for decorations and furniture arrangement, including visions for the main hall, the outside area, check-in areas; and
    - ✓ A map showing the intended layout of all furniture, decorations, and catering stations.

- ✓ All decorations and furniture must reflect the decoration concept discussed in part 2.3 below (Decoration Concept).

2.2. General Furniture Arrangement: Furniture should be primarily standing/cocktail setup for about 800 guests hosted at the Venue. It should include very limited lounge-style seating. The furniture setup should encourage guest movement and socializing across indoor and outdoor Venue spaces. Approximately 30-40 high-top cocktail tables spaced within the indoor area and tented outdoor area. High-quality 5-10 single to 3-seater chairs and sofas spaced within the indoor area and tented outdoor area without blocking any cocktail tables. These areas should have small end tables accompanying them. The loungers are to be neutral with gold accents. Selection of furniture to be determined upon award. All furnishings should be in acceptable, non-tarnished, and clean condition.

2.3. Decoration Concept:

- 2.3.1. The Theme is “The Golden Age and American Greatness Through the Eras” The colors white (or ivory) and gold with flag-themed highlights of deep red and deep blue should be incorporated throughout. The creative concept for the Event must include chandeliers, gold accents throughout the space, wall and overhead space coverings, and Mar-a-Lago-inspired style furnishing, with limited high-end flower bouquets. The concept design must reflect at least 80 percent of the components in the visual provided in the annex and fully align to the nature of the Event and objectives as detailed in part 1 of this SOW. Services must include 2D and 3D modeling of the main areas to visualize final layout and distribution, samples of material used (e.g. linens for table coverings), and other photos of furniture and material for use.
- 2.3.2. The Proposal should include decorations for the overhead space, walls, stages, post-determined graphic design structure, and tables for all designated Event spaces.
- 2.3.3. Create a unique, high-end event design utilizing an array of design elements to create a sophisticated glitz and glamor experience. The quality of the products should reflect the importance of the Event – the 250th anniversary celebration of the United States of America, the U.S. Embassy’s largest and most important diplomatic representational event in 2026.
- 2.3.4. Set up without obstructing the view toward the main stage.

2.4. Tenting:

- 2.4.1. Provide a large, air-conditioned transparent tent (approximately 15m x 18m) with integrated lighting and hard flooring to accommodate inclement weather while ensuring guests have an unobstructed view of the fireworks and entertainment stage.
- 2.4.2. Provide a 6m x 12m with cooling solution, transparent tent with integrated lighting for the “Roaring Twenties Lounge.” (Placement and flooring to be determined).

2.5. Check-in (VIP and General) and VIP Areas:

- 2.5.1. Two check-in areas must be prepared outside of the entrance to the Venue, each with its own entrance into the Venue. The check-in areas should be clearly marked as “VIP Check-in” and “General Check-in.” Lines for the check-in areas should be delineated using rope barriers or divisors.
- 2.5.2. Signage for guests shall be provided as follows:
  - (a) one sign (with stand) for Uber, taxi, or parking shuttle arrival/ drop offs and
  - (b) two signs (with stands) for the shuttle.

- 2.5.3. The VIP check-in area should be near the main entry area of the Venue, to include two cocktail tables with tablecloths and four cocktail height chairs (two for each table).
  - 2.5.4. The regular check-in area should include two (2) long tables with tablecloths and four (4) regular height chairs (two for each table). The check-in area should be outside. Provide tent covering for at least two long tables with internal lighting.
  - 2.5.5. Both check-in areas will need access to electricity, including extension cords and cords covers.
  - 2.5.6. Provide appropriate security barriers around the perimeter of the Venue to ensure access occurs only through the check-in areas.
  - 2.5.7. Provide or coordinate with Venue the furnishing of two designated holding areas – one for the U.S. Ambassador and one for the senior representative of the Government of Panama. Each holding area should have at least 2 lounge chairs and a coffee table. At least one must contain or be near a private bathroom.
  - 2.5.8. Provide or coordinate with Venue the furnishing of a holding area for the performers.
  - 2.5.9. The check-in area will be staffed by Embassy personnel and at least one staff member from the Offeror company.
- 2.6. Graphic Design and Printing: The decorator's scope shall include the planning, placement, and integration of **externally provided, prefabricated graphic fixtures** within the overall event décor scheme, including VIP and general guest entrance areas and other designated locations throughout the venue.
- 2.7. Banquet/Reception Hall Floor Plan, Seating Arrangements, and Table Settings:
- 2.7.1. Provide cocktail tables with décor and coverings placed throughout the Venue.
  - 2.7.2. To ensure maximum mobility, only limited lounge seating options should be provided in the Venue, primarily for guests with limited mobility. Please include signage for fifty percent of the lounge seating to be reserved for those with limited mobility.
  - 2.7.3. Food and beverage stations should be spread throughout the Venue (with approximately half in the main hall and half throughout the outdoor space) to encourage guests to maximize the use of all the spaces available.
  - 2.7.4. There should be at least four (4) food and four (4) bar stations. The contractor shall furnish, install, and set up the food and beverage stations within the indoor and outdoor event area. The contractor's scope is limited to furniture, fixtures, décor, and spatial setup.
  - 2.7.5. Provide a well-lit and direct path to an open, covered, air-conditioned space for the fireworks.
- 2.8. Roaring Twenties Lounge: The contractor shall furnish, install, and set up a designated themed lounge within the outdoor event area. The contractor's scope is limited to furniture, fixtures, décor, and spatial setup.
- 2.9. Fireworks Display
- 2.9.1. Provide and display waterproof fireworks at Veracruz, to give the guests the impression of fireworks over the waters of the Panama Canal.
  - 2.9.2. A quotation for a 9-minute fireworks display is requested that it delivers a dynamic and engaging experience for attendees. The program should incorporate a variety of effects, colors, and firing patterns to sustain visual interest throughout the display. Inclusion of unique or specialty elements that create memorable moments is encouraged. These elements should include but not be limited to Roman candles, 5, 4, and 3-inch grenades, professional boxes, whistling tails and a grand finale with more than 250 fireworks at

- once, all fired with a wireless electronic console. Fireworks should be commercial grade, aerial displays (mortars, for example). They should have waterproof, secure storage.
- 2.9.3. The fireworks provider must be certified by appropriate Panamanian government authority for commercial fireworks displays, and the location must comply with all fire department/safety regulations established by Panamanian authorities. Any required permits for the Event must be obtained.
  - 2.9.4. Provide a contingency plan and refund information if fireworks cannot be displayed due to inclement weather.
  - 2.9.5. The fireworks provider will be required to coordinate on music and other logistics for the fireworks display.

2.10. Portable Restrooms:

- a) Two (2) climate-controlled, luxury style portable –restrooms that include hand-washing sinks
- b) Four (4) single portable restrooms with interior accompanying handwashing stations to be placed in various areas of the site.

The contractor will propose a method of placement to maximize availability and accessibility for all guests while minimizing disruptions and odors. The contractor will also propose decoration so as not to detract from the event space's decor. The contractor will also provide supplies and onsite attendant/technician for the portable bathrooms throughout the event, ensuring restrooms remain clean, serviced, and fully stocked at all times, including an adequate supply of toilet paper, hand soap, and other necessary restroom consumables.

**3. Other Specified Accommodation and Services:**

1. Propose and provide displays aligned with the theme.
2. Coordinate the following directly with the Venue:
  - 2.1 Any power outlets, power cords, and power cord covers needed for displays and check-in tables. If the Venue is unable to provide these, the Contractor will be expected to furnish them.
  - 2.2 Rope line separators or divisors (as per Part 2.5 - Check-in (VIP and General) and VIP Area) for VIP and general public entrances and protocol act pathway inside the main room. The rope lines for the protocol act should be removed once the protocol act ends. Please provide a picture of the type of separators to be used.
3. Install and remove all decorations, design, print, and other equipment used for the Event in coordination with the Venue, from June 30 to July 3, 2026.
4. All set-up and decorations for the event must be completed **at least five hours prior** to the event's starting time of 7:00 p.m. (that is, by 2:00 p.m. on July 3, 2026), to allow sufficient time for security checks prior to the event. After this time, all personnel entering the premises will be screened. No new vehicles or equipment will be allowed on the premises after the security check has been completed.
5. Collaborate with the Embassy POCs for other needs.
6. As needed, coordinate with third party contractors regarding the Venue, production, entertainment, catering, beverages, bar service, shuttling services, security, and other services.

## II. SECURITY

General. The Government reserves the right to deny access to U.S.-leased/operated facilities to any individual. **After award, the contractor has five (5) calendar days to provide the names and a clear copy of the ID card or passport on all contractor personnel who shall be used on this contract. Please include back-up personnel as well.** For each car/truck that will enter the premises, the license plate number with a copy of the license is also required.

## III. STANDARDS OF CONDUCT

(a) General. The contractor shall maintain satisfactory standards of employee competency, conduct, cleanliness, appearance, and integrity and shall be responsible for taking such disciplinary action with respect to employees as required. Each Contractor employee is expected to adhere to standards of conduct that reflect credit on themselves, their employer, and the United States Government. The Government reserves the right to direct the contractor to remove an employee from the worksite for failure to comply with the standards of conduct. The contractor shall immediately replace such an employee to maintain continuity of services at no additional cost to the Government.

(b) Uniforms. The contractor's employees shall wear clean, neat and identifiable uniforms, although not necessarily identical uniforms.

(c) Disorderly conduct, use of abusive or offensive language, quarreling, intimidation by words, actions, or fighting shall not be condoned. Also included is participation in disruptive activities that interfere with normal and efficient Government operations.

(d) Intoxicants and Narcotics. The contractor shall not allow its employees while on duty to possess, sell, consume, or be under the influence of intoxicants, drugs or substances that produce similar effects. All employees shall be in good general health and capable of acceptable performance of their duties. All employees shall be free from communicable diseases.

## IV. LAWS AND REGULATIONS

Without additional expenses to the Government, the contractor shall comply with all laws, codes, ordinances, and regulations required to perform this work. If there is a conflict between the contract and requirements of local law, the contractor shall promptly advise the Contracting Officer of the conflict and of the Contractor's proposed course of action for resolution by the Contracting Officer.

The contractor shall comply with all local labor laws, regulations, customs and practices pertaining to labor, safety, and similar matters, unless they are inconsistent with the requirements of this contract.

## V. INSURANCE

Personal Injury, Property Loss or Damage (Liability). The contractor assumes absolute responsibility and liability for any and all personal injuries or death and property damage or losses suffered due to negligence of the Contractor's personnel in the performance of this contract. The contractor's assumption of absolute liability is independent of any insurance policies.

## VI. VENUE SAFETY COORDINATION

The contractor shall meet the performance requirement of providing advisory coordination support with the venue safety personnel to ensure alignment with venue safety procedures, emergency protocols, and occupancy requirements applicable to the event.

## VII. LOGISTICS

### **Deliveries**

All deliveries must be completed no later than 2:00 p.m. on July 2, 2026. The contractor must ensure that sufficient time is factored for all deliveries to undergo security screening requirements.

### **Equipment Set Up and Teardown**

**All tents must be installed on June 30, 2026;** All event equipment shall be delivered and installed no later than 2:00 p.m. on July 2, 2026. The contractor must ensure that sufficient time is factored for all deliveries to undergo security screening requirements. All equipment and any other remaining items must be removed from the event space no later than 11:59 p.m. on July 3, 2026. The contractor shall return the event space to its original condition by July 3, 2026, at 11:59 p.m.

### **Staff**

The contractor provides and manages onsite portable restrooms attendant/technician with coordination of dress code and presentation standards.

## VIII. CANCELLATION POLICY

The contractor must provide its proposed cancellation policy and other proposed special terms and conditions.

## IX. QUALITY ASSURANCE AND SURVEILLANCE PLAN (QASP)

- a) This plan provides an effective method to promote satisfactory contractor performance. The QASP provides a method for the Embassy POC to monitor Contractor performance, advise the Contractor of unsatisfactory performance, and notify the Contracting Officer of continued unsatisfactory performance. The Contractor, not the Government, is responsible for management and quality control to meet the terms of the contract. The role of the Government is to monitor quality to ensure that contract standards are achieved.

| Performance Objective                                                         | Scope of Work Paragraphs | Performance Threshold                                                                                |
|-------------------------------------------------------------------------------|--------------------------|------------------------------------------------------------------------------------------------------|
| <u>Services.</u><br>venue decoration services set forth in the scope of work. | 1 thru VIII              | All required services are performed and no more than one (1) customer complaint is received per day. |

- b) **SURVEILLANCE.** The Embassy POC will receive and document all complaints from Government personnel regarding the services provided. If appropriate, the Embassy POC will send the complaints to the Contractor for corrective action.
- c) **STANDARD.** The performance standard is that the Government receives no more than one (1) customer complaint per month. The Embassy POC shall notify the Contracting Officer of the complaints so that the Contracting Officer may take appropriate action to enforce the inspection clause (FAR 52.212.4, Contract Terms and Conditions-Commercial Items (May 2001), if any of the services exceed the standard.

## d) PROCEDURES.

- 1) If any Government personnel observe unacceptable services, either incomplete work or required services not being performed they should immediately contact the Embassy POC.
- 2) The Embassy POC will complete appropriate documentation to record the complaint.
- 3) If the Embassy POC determines the complaint is invalid, the Embassy POC will advise the complainant. The Embassy POC will retain the annotated copy of the written complaint for his/her files.
- 4) If the Embassy POC determines the complaint is valid, the Embassy POC will inform the Contractor and give the Contractor additional time to correct the defect, if additional time is available. The Embassy POC shall determine how much time is reasonable.
- 5) The Embassy POC shall, as a minimum, orally notify the Contractor of any valid complaints.
- 6) If the Contractor disagrees with the complaint after investigation of the site and challenges the validity of the complaint, the Contractor will notify the Embassy POC. The Embassy POC will review the matter to determine the validity of the complaint.
- 7) The Embassy POC will consider complaints as resolved unless notified otherwise by the complainant.

Repeat customer complaints are not permitted for any services. If a repeat customer complaint is received for the same deficiency during the service period, the Embassy POC will contact the Contracting Officer for appropriate action under the Inspection clause.

## **SECTION 2 - CONTRACT CLAUSES**

52.212-4 CONTRACT TERMS AND CONDITIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION JAN 2026), is incorporated by reference (See SF-1449, Block 27A)

ADDENDUM - None

### 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This purchase order or BPA incorporates the following clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address:

<https://www.acquisition.gov/far-overhaul/> this address is subject to change.

### **FEDERAL ACQUISITION REGULATION (48 CFR CHAPTER 1) CLAUSES:**

| <b>NUMBER</b> | <b>TITLE</b>                                                                                                                                   | <b>DATE</b>             |
|---------------|------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------|
| 52.203-19     | PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS                                                             | JAN 2017                |
| 52.204-7      | SYSTEM FOR AWARD MANAGEMENT                                                                                                                    | DEVIATION<br>JAN 2026   |
| 52.204-9      | PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL                                                                                         | DEVIATION<br>JAN 2026   |
| 52.204-10     | REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS                                                                             | DEVIATION<br>JAN 2026   |
| 52.204-13     | SYSTEM FOR AWARD MANAGEMENT MAINTENANCE                                                                                                        | DEVIATION<br>JAN 2026   |
| 52.204-19     | INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS                                                                               | DEC 2014                |
| 52.204-90     | OFFEROR IDENTIFICATION                                                                                                                         | (DEVIATION<br>JAN 2026) |
| 52.204-91     | CONTRACTOR IDENTIFICATION                                                                                                                      | (DEVIATION<br>JAN 2026) |
| 52.209-6      | PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED | DEVIATION<br>JAN 2026   |
| 52.209-10     | PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS                                                                                 | DEVIATION<br>JAN 2026   |
| 52.212-4      | CONTRACT TERMS AND CONDITIONS—COMMERCIAL ITEMS                                                                                                 | DEVIATION<br>JAN 2026   |
| 52.222-19     | CHILD LABOR—COOPERATION WITH AUTHORITIES AND REMEDIES                                                                                          | DEVIATION<br>FEB 2026   |
| 52.222-50     | COMBATING TRAFFICKING IN PERSONS                                                                                                               | DEVIATION<br>FEB 2026   |

|           |                                                                                 |                       |
|-----------|---------------------------------------------------------------------------------|-----------------------|
| 52.225-14 | INCONSISTENCY BETWEEN ENGLISH VERSION AND TRANSLATION OF CONTRACT               | FEB 2020              |
| 52.226-8  | ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING             | MAY 2024              |
| 52.228-4  | WORKERS' COMPENSATION AND WAR-HAZARD INSURANCE OVERSEAS                         | APR 1984              |
| 52.232-25 | PROMPT PAYMENT                                                                  |                       |
| 52.232-29 | TERMS FOR FINANCING OF PURCHASES OF COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES | NOV 2021              |
| 52.232-34 | PAYMENT BY ELECTRONIC FUNDS TRANSFER-OTHER THAN SYSTEM FOR AWARD MANAGEMENT     | JUL 2013              |
| 52.232-40 | PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS                 | MAR 2023              |
| 52.233-3  | PROTEST AFTER AWARD                                                             | DEVIATION<br>JAN 2026 |
| 52.233-4  | APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM                                     | DEVIATION<br>JAN 2026 |
| 52.240-91 | SECURITY PROHIBITIONS AND EXCLUSIONS                                            | DEVIATION<br>JAN 2026 |

**ADDENDUM TO CONTRACT CLAUSES**  
**FAR AND DOSAR CLAUSES NOT PRESCRIBED IN PART 12**

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at: <https://www.acquisition.gov/far-overhaul/> this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at [e-CFR](#) to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

DOSAR clauses may be accessed at: <https://acquisition.gov/dosar>

**DEPARTMENT OF STATE ACQUISITION REGULATION (48 CFR Chapter 6) CLAUSES:**

| NUMBER     | TITLE                                                 | DATE     |
|------------|-------------------------------------------------------|----------|
| 652.237-72 | OBSERVANCE OF LEGAL HOLIDAYS AND ADMINISTRATIVE LEAVE | FEB 2015 |
| 652.243-70 | NOTICES                                               | AUG 1999 |
| 652.247-71 | SHIPPING INSTRUCTIONS                                 | FEB 2015 |

The following DOSAR clauses are provided in full text:

**CONTRACTOR IDENTIFICATION (JULY 2008)**

Contract performance may require contractor personnel to attend meetings with government personnel and the public, work within government offices, and/or utilize government email.

Contractor personnel must take the following actions to identify themselves as non-federal employees:

- 1) Use an email signature block that shows name, the office being supported and company affiliation (e.g. “John Smith, Office of Human Resources, ACME Corporation Support Contractor”);
- 2) Clearly identify themselves and their contractor affiliation in meetings;
- 3) Identify their contractor affiliation in Departmental e-mail and phone listings whenever contractor personnel are included in those listings; and
- 4) Contractor personnel may not utilize Department of State logos or indicia on business cards.

(End of clause)

652.232-70 PAYMENT SCHEDULE AND INVOICE SUBMISSION (FIXED-PRICE) (AUG 1999)

- (a) General. The Government shall pay the contractor as full compensation for all work required, performed, and accepted under this contract the firm fixed-price stated in this contract.
- (b) Invoice Submission. The contractor shall submit their original invoices to the office identified in Block 18b of SF-1449 (see below instructions). To constitute a proper invoice, the invoice shall include all the items required by FAR 32.905(e).

After the products/services have been delivered, please submit your original invoice electronically via the MyILMS Payment Portal:

<https://mygrants.servicenowservices.com> . Uploading the invoice to this new portal will allow you to track the payment status of your submitted invoice. If you experience difficulties with the portal, please send the electronic invoice directly to Finance at [PNMFMOINV@state.gov](mailto:PNMFMOINV@state.gov) , referencing the Purchase Order number.

If payment has not been received within 30 days of invoice submission, please contact the Office of Financial Management (FMO) via email at [PNMFMOINV@state.gov](mailto:PNMFMOINV@state.gov) , including both the Purchase Order and Invoice numbers.

If you do not yet have an account on the MyILMS Payment Portal to upload your invoices, we recommend that you create one to track the payment status of each of your submitted invoices:

- (c) Contractor Remittance Address. The Government will make payment to the contractor's address stated on the cover page of this contract, unless a separate remittance address is shown below:

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(End of clause)

DOSAR 652.239-801 **DISCLOSURE OF AI USE CLAUSE (DEVIATION) (SEP 2025)**

- (a) *Definitions*. As used in this clause-

*Artificial Intelligence (AI)*: The term "artificial intelligence" has the meaning provided in Section 238(g) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019.

i. This definition of AI encompasses, but is not limited to, the AI technical subfields of machine learning (including deep learning as well as supervised, unsupervised, and semi-supervised approaches), reinforcement learning, transfer learning, and generative AI.

ii. This definition of AI does not include robotic process automation or other systems whose behavior is defined only by human-defined rules or that learn solely by repeating an observed practice exactly as it was conducted.

iii. For this definition, no system should be considered too simple to qualify as covered AI due to a lack of technical complexity (e.g., the smaller number of parameters in a model, the type of model, or the amount of data used for training purposes).

iv. This definition includes systems that are fully autonomous, partially autonomous, and not autonomous, and it includes systems that operate both with and without human oversight.

**(b) Disclosure of AI Use in Contract Performance.** When the Contractor or any of its subcontractors, vendors, or agents intends to incorporate AI into the performance of the contract, the Contractor shall provide the following disclosures in its offer:

Disclose the intended use of AI and provide a description of the AI system or capability and its purpose within the contract scope; specify whether the system was developed internally, acquired from a third party, or is publicly/commercially available; indicate if the AI system will process PII or be used in ways that may affect privacy, civil rights, safety, or public interaction; detail the governance, oversight, and human-in-the-loop mechanisms to be applied; and describe any applicable testing, evaluation, risk management, or bias mitigation measures that have been or will be implemented.

These disclosures must be updated promptly to the Contracting Officer during the period of performance upon any new use of AI or significant material change to the existing AI capability, its functionality, its use case, or its data inputs/outputs during the life of the contract.

The Government reserves the right to review the proposed AI use, request additional safeguards or controls, and/or disallow its use if it is deemed inconsistent with agency policy, legal requirements, or federal AI governance standards.

(End of Clause)

#### 652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The contractor warrants the following:

- (1) That it has obtained authorization to operate and do business in the country or countries in which this contract will be performed;
- (2) That it has obtained all necessary licenses and permits required to perform this contract; and,
- (3) That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

#### 652.239-804 UNBIASED AI PRINCIPLES FOR LARGE LANGUAGE MODELS (LLMS) AND MINIMUM THRESHOLD TRANSPARENCY PROVISION (DEVIATION) (MAR 2026)

(a) Definitions. As used in this clause-

**Artificial Intelligence (AI):** The term "artificial intelligence" has the meaning provided in Section 238(g) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019.

- i. This definition of AI encompasses, but is not limited to, the AI technical subfields of machine learning (including deep learning as well as supervised, unsupervised, and semi-supervised approaches), reinforcement learning, transfer learning, and generative AI.
- ii. This definition of AI does not include robotic process automation or other systems whose behavior is defined only by human-defined rules or that learn solely by repeating an observed practice exactly as it was conducted.
- iii. For this definition, no system should be considered too simple to qualify as covered AI due to a lack of technical complexity (e.g., the smaller number of parameters in a model, the type of model, or the amount of data used for training purposes).
- iv. This definition includes systems that are fully autonomous, partially autonomous, and not autonomous, and it includes systems that operate both with and without human oversight.

**Large Language Model (LLM):** The term "LLM" means a large language model, which is a generative AI model trained on vast, diverse datasets that enable the model to generate natural-language responses to user prompts.

**Unbiased AI Principles.** It is the policy of the United States to promote the innovation and use of trustworthy AI. To advance that policy, agency heads must, consistent with applicable law and in consideration of guidance issued by OMB Memorandum M-26-04, procure only those LLMs developed in accordance with the following two principles (Unbiased AI Principles):

- **Truth-seeking:** LLMs must be truthful in responding to user prompts seeking factual information or analysis. LLMs must prioritize historical accuracy, scientific inquiry, and objectivity, and must acknowledge uncertainty where reliable information is incomplete or contradictory.
- **Ideological Neutrality:** LLMs must be neutral, nonpartisan tools that do not manipulate responses in favor of ideological dogmas. Developers must not intentionally encode partisan or ideological judgments into an LLM's outputs unless those judgments are prompted by or otherwise readily accessible to the end user.

(b) This provision applies to any solicitation or order in which the offeror proposes to develop, provide, integrate, resell, deploy, operate, or otherwise make available generative AI capabilities, including LLMs, whether proprietary, open-source, or third-party, and whether directly or indirectly through standalone LLMs or generative AI capabilities integrated in software products or services.

Offerors must provide sufficient documentation to demonstrate transparency regarding the proposed LLM. At a minimum, Offerors must submit the following as part of their submission:

**Requirement for Compliance.** The offeror must ensure that any proposed LLM complies with the Federal Government's Unbiased AI Principles, as required by OMB Memorandum M-26-04, and with Executive Order 14319, to the extent applicable to the offeror's role and the proposed solution. The offeror must provide sufficient information to enable the Government to assess whether the proposed LLM aligns with these requirements, consistent with the offeror's position in the AI software supply chain and its relationship to the original LLM developer.

**Information to Support Compliance Determination.** To support the Government's compliance determination, the offeror must submit documentation or descriptions addressing relevant governance, risk management, and technical or operational controls applied at the model, system, and/or application level, as appropriate.

The scope, depth, and form of information required must be proportionate and may vary based on:

1. The offeror's role as an original LLM developer, reseller, system integrator, platform operator, or other intermediary; and

2. The degree of access the offeror has to information provided by the original LLM developer.

Offerors closer to the original LLM developer are generally expected to have access to, and provide, more comprehensive information than those further downstream in the supply chain.

Third-Party and Intermediary LLM Providers. When the offeror is not the original developer of the LLM, the offeror must, to the extent practicable:

1. Identify the roles of the entities involved in the development, deployment, and distribution of the LLM;
2. Describe the extent of documentation, assurances, or collaboration available from the original LLM developer; and
3. Provide all information reasonably available to the offeror that is relevant to assessing compliance with the Unbiased AI Principles and Executive Order 14319, including disclosure of material limitations on access to model-level or developer-held information.

The Government acknowledges that the availability of information and the ability to implement or influence model-level controls may depend on the willingness of the original LLM developer to cooperate through third-party distributors or integrators. However, sufficient documentation must be provided to establish compliance with the Unbiased AI Principles.

**Protection of Proprietary and Sensitive Information.** Nothing in this provision must be construed to require the disclosure of sensitive technical data, proprietary information, trade secrets, or intellectual property—such as specific model weights or confidential implementation details—where such disclosure is not otherwise required by law.

Documentation requests are intended to obtain sufficient information to assess risk management actions, governance practices, and compliance-related controls without compelling unnecessary disclosure of sensitive technical information.

**Evaluation and Ongoing Considerations.** The Government will evaluate the information provided under this provision solely for purposes of determining alignment with the Unbiased AI Principles, Executive Order 14319, and the suitability of the proposed LLM for the intended use.

(c) Minimum Threshold for Large Language Model (LLM) Transparency.

The Offeror must provide an Acceptable Use Policy, that describes appropriate and prohibited uses of the proposed LLM and explains how the policy applies to the product offering. The Offeror must also provide Model Cards, System Cards, Data

Cards, or a combination thereof, as customarily produced for the proposed LLM, summarizing essential information about the model, system, and/or data, including high-level descriptions of training and post-training processes, identified risks and mitigations, known limitations, and available evaluation or benchmark results. The Offeror must further provide end user resources, such as product tutorials, developer guides, or other user documentation, sufficient to support proper use of the LLM and maximize utility for Government users. Finally, the Offeror must identify a mechanism for end user feedback that enables Government users to report outputs that may violate the Unbiased AI Principles, which may include a designated email inbox, product point of contact, or comparable reporting mechanism.

**By submission of its offer, the Offeror represents that it complies with the Minimum Transparency Requirements for Large Language Models (LLMs), as set forth in OMB Memorandum M-26-04.**

Failure to provide the required transparency materials may render the Offeror ineligible for award. The Government may consider the completeness and clarity of the submitted information in its evaluation of proposals and may require the Contractor to maintain and update these materials throughout the period of performance.

## (End of Provision)

## 652.239-805 MINIMUM THRESHOLD FOR ENHANCED LARGE LANGUAGE MODEL (LLM) TRANSPARENCY PROVISION (DEVIATION)(MAR 2026)

(a) Definitions. As used in this provision

Large Language Model (LLM) - The term “LLM” means a large language model, which is a generative AI model trained on vast, diverse datasets that enable the model to generate natural-language responses to user prompts.

(b) Minimum Threshold for Enhanced Large Language Model (LLM) Transparency Provision

The Offeror must provide additional documentation and disclosures directly relevant to enhancing transparency with respect to the Unbiased AI Principles as part of their submission, which may include the following:

The Offeror must describe pre-training and post-training activities that affect the factuality, grounding, and neutrality of LLM outputs, including actions taken to improve accuracy and reliability; the use of system-level prompts that provide natural-language instructions governing model behavior, particularly where information is incomplete, contradictory, or subject to interpretation; categories of outputs restricted through content moderation or safety filters; the use of red teaming or similar methods to continuously assess and mitigate bias; any training or development activities conducted outside the United States, including the type of activity and country involved; and any modifications or configurations implemented to comply with regulations issued by governments other than the U.S. Federal Government.

The Offeror must provide model evaluation information relevant to bias, accuracy, and trustworthiness, including results of bias evaluations conducted by or on behalf of the vendor and a description of the methodologies used (such as testing politically oriented prompt pairs), as well as benchmark scores used by the vendor to measure bias, helpfulness, honesty, or accuracy, including performance on ambiguous versus straightforward questions and, where applicable, across multiple languages.

The Offeror must describe enterprise-level controls available to the Government, including governance tools such as configurable system instructions or content filters that supplement base model behavior; evaluation tools that enable comparison of outputs within a model or across multiple models; and product features that require the model to cite sources or otherwise provide transparency into the provenance of generated outputs.

If the Offeror is not the original developer of the LLM, the Offeror must disclose any third-party modifications or controls applied to the model, including the use of classifiers, system prompts, fine-tuning, content moderation mechanisms, or filtering technologies that affect model outputs.

The Government may consider the completeness, relevance, and clarity of the submitted information in its evaluation of proposals. Failure to provide requested enhanced transparency information may be grounds for exclusion from award. If awarded, the Contractor may be required to maintain and update such information throughout the period of performance.

The obligations in this clause apply to all prime contractors, subcontractors, vendors, and third parties who handle LLMs on behalf of the Contractor and must be flowed down to all relevant subcontracts.

(End of Provision)

Prescription: Insert the following clause in solicitations and contracts, regardless of dollar amount for the procurement of Artificial Intelligence LLMs and or supplies and Services that utilize LLMs directly or indirectly.

652.239-806 LARGE LANGUAGE MODEL (LLM) EXIT AND TRANSITION FOR UNBIASED AI COMPLIANCE CLAUSE (DEVIATION) (MAR 2026)

- (a) Definitions. As used in this provision-  
Large Language Model (LLM) - The term “LLM” means a large language model, which is a generative AI model trained on vast, diverse datasets that enable the model to generate natural-language responses to user prompts.
- (b) This clause applies when the Contractor provides, integrates, operates, or otherwise makes available an LLM or implements any material update, upgrade, replacement, or modification to the LLM or related training data, architecture, or hosting environment used in performance of this contract.
- (c) Right to Discontinue Use. The Government reserves the right to discontinue use of an LLM, in whole or in part, when it is determined that continued use presents unacceptable risk or no longer aligns with the Federal Government’s Unbiased AI Principles as described in OMB Memorandum M-26-04. Any such determination must be made consistent with applicable law and contract terms.
- (d) Notice. Except in cases requiring immediate action to mitigate significant risk, the Government must provide written notice to the Contractor prior to discontinuing use of the LLM. The notice must describe the basis for the determination and the intended scope of discontinuation.
- (e) Transition and Exit Support. Upon notice under this clause, the Contractor must provide reasonable and commercially customary transition assistance, including the following, as applicable:
1. Orderly disengagement of the LLM from Government systems or workflows;
  2. Return or secure disposition of Government data in accordance with contract requirements; and
  3. Documentation necessary to support continuity of operations during the transition period. Transition assistance must not require disclosure of proprietary information, trade secrets, model weights, or other sensitive technical data, and must be subject to mutually agreed scope, duration, and compensation where applicable.
- (f) No Waiver of Contractor Rights. Nothing in this clause must be construed to:
1. Require the Contractor to modify or disclose proprietary models or intellectual property;
  2. Expand the Government’s rights beyond those otherwise provided in this contract; or
  3. Limit the Contractor’s rights under applicable termination, disputes, or intellectual property clauses.
- (g) Relationship to Other Contract Rights. This clause does not replace or supersede any termination for convenience, termination for cause, or other rights otherwise available to the Government under this contract or applicable law. Any exit or transition conducted under this clause must be implemented in a manner consistent with those authorities.

(End of Clause)

### **SECTION 3 - SOLICITATION PROVISIONS**

Instructions to Offeror. Each offer must consist of the following:

FAR 52.212-1, INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION 2026) IS INCORPORATED BY REFERENCE. (SEE SF-1449, BLOCK 27A).

#### **ADDENDUM TO 52.212-1**

A. **SUMMARY OF INSTRUCTIONS.** Each offer must consist of the following:

A.1. **SF-1449.** A completed solicitation, in which the SF-1449 cover page (blocks 12, 17, 19-24, and 30 as appropriate), and Sections 1 and 5 have been filled out.

A.2. **INFORMATION.** Information demonstrating the offeror's/quoter's ability to perform, including:

- (1) Name of a Project Manager (or other liaison to the Embassy/Consulate) who understands written and spoken English and Spanish;
- (2) Evidence that the offeror/quoter operates an established business with a permanent address and telephone listing in Panama;
- (3) The offeror shall provide proof of SAM UEI number.
- (4) List of clients over the past **8 years**, demonstrating prior experience with relevant past performance information and references (provide dates of contracts, places of performance, value of contracts, contact names, telephone and fax numbers and email addresses). Offerors are advised that the past performance information requested above may be discussed with the client's contact person. In addition, the client's contact person may be asked to comment on the offeror's:
  - Quality of services provided under the contract;
  - Compliance with contract terms and conditions;
  - Effectiveness of management;
  - Willingness to cooperate with and assist the customer in routine matters, and when confronted by unexpected difficulties; and
  - Business integrity / business conduct.

The Government will use past performance information primarily to assess an offeror's capability to meet the solicitation performance requirements, including the relevance and successful performance of the offeror's work experience. The Government may also use this data to evaluate the credibility of the offeror's proposal. In addition, the Contracting Officer may use past performance information in making a determination of responsibility.

- (5) Evidence that the offeror/quoter can provide the necessary personnel, equipment, and financial resources needed to perform the work.
- (6) The name and direct contact information for an event manager from the Contractor's side (Contractor POC) who will be the main liaison with the Embassy CO. The Contractor POC must reside in Panama and be an employee of the Offeror. The Contractor POC should speak both English and Spanish.
- (7) Proposal must show complete acceptance and compliance with all requirements in the statement of work.
- (8) A list of clients (including other Embassies and internationally recognizable corporations) to which the Offeror supplied similar service to within the past **eight (8) years**. This list must include name of each customer, the customer's point of contact, and the customer point of contact's contact information (email address and local telephone number).
- (9) The Offeror shall submit, as part of its proposal, detailed floor plans for decorations and food and beverage station layouts, including dimensions and spatial configurations. The proposal shall also include supporting technical information, such as images, renderings, and, if requested, video or audio materials demonstrating the proposed products, materials, and services to be provided for the event.
- (10) The Offeror must have demonstrated experience in Panama decorating and furnishing international events, particularly with a U.S. influence and flair. The Offeror would have experience working with the selected Venue or similar unfurnished, open space venues for events larger than 800 persons.
- (11) Offeror must provide a portfolio of the work previously completed (e.g. photos and video footage from events at similar venues). Ability to work within venue constraints (e.g. limited bathrooms, walls needing to be covered).
- (12) The offeror shall address its plan to obtain all licenses and permits required by local law (see DOSAR 652.242-73 in Section 2). If offeror already possesses the locally required licenses and permits, a copy shall be provided.
- (13) The offeror's strategic plan for venue decoration services to include but not limited to:
  - (a) A work plan taking into account all work elements in Section 1, Performance Work Statement.
  - (b) Identify types and quantities of equipment, supplies and materials required for performance of services under this contract. Identify if the offeror already possesses the listed items and their condition for suitability and if not already possessed or inadequate for use how and when the items will be obtained;
  - (c) Plan of ensuring quality of services including but not limited to contract administration and oversight; and
  - (d) (1) If insurance is required by the solicitation, a copy of the Certificate of Insurance(s), or (2) a statement that the Contractor will get the required insurance, and the name of the insurance provider to be used.

ADDENDUM TO SOLICITATION PROVISIONS  
FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at <https://www.acquisition.gov/far-overhaul/> this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at [e-CFR](#) to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

The following Federal Acquisition Regulation solicitation provisions are incorporated by reference:

| PROVISION | TITLE AND DATE                                          |
|-----------|---------------------------------------------------------|
| 52.214-34 | SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR 1991) |

THE FOLLOWING FAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

52.237-1 SITE VISIT (APR 1984)

Offerors are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.

The site visit will be held on **Monday, April 27, 2026, at 1:30 p.m. (local time)** at the Biomuseo, located in Amador, Panama City, Panama. Prospective quoters should contact [PNMPROCREQ@state.gov](mailto:PNMPROCREQ@state.gov) and [ReyesMA@state.gov](mailto:ReyesMA@state.gov) for additional information and to confirm participation.

THE FOLLOWING DOSAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

652.206-70 COMPETITION ADVOCATE/OMBUDSMAN (FEB 2015)

(a) The Department of State’s Advocate for Competition is responsible for assisting industry in removing restrictive requirements from Department of State solicitations and removing barriers to full and open competition and use of commercial items. If such a solicitation is considered competitively restrictive or does not appear properly conducive to competition and commercial practices, potential offerors are encouraged first to contact the contracting office for the solicitation. If concerns remain unresolved, contact:

- (1) For solicitations issued by the Office of Acquisition Management (A/LM/AQM) or a Regional Procurement Support Office, the A/LM/AQM Advocate for Competition, at [AQMCompetitionAdvocate@state.gov](mailto:AQMCompetitionAdvocate@state.gov).

(2) For all others, the Department of State Advocate for Competition at [cat@state.gov](mailto:cat@state.gov).

(b) The Department of State's Acquisition Ombudsman has been appointed to hear concerns from potential offerors and contractors during the pre-award and post-award phases of this acquisition. The role of the ombudsman is not to diminish the authority of the Contracting Officer, the Technical Evaluation Panel or Source Evaluation Board, or the selection official. The purpose of the ombudsman is to facilitate the communication of concerns, issues, disagreements, and recommendations of interested parties to the appropriate Government personnel, and work to resolve them. When requested and appropriate, the ombudsman will maintain strict confidentiality as to the source of the concern. The ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of formal contract disputes. Interested parties are invited to contact the contracting activity ombudsman, **James M. DuVernay** at (507) 317-5225.

For an American Embassy or overseas post, refer to the numbers below for the Department Acquisition Ombudsman. Concerns, issues, disagreements, and recommendations which cannot be resolved at a contracting activity level may be referred to the Department of State Acquisition Ombudsman at (703) 516-1696, by fax at (703) 875-6155, or write to:

|                                             |
|---------------------------------------------|
| U.S. Department of State                    |
| Acquisition Ombudsman                       |
| Office of the Procurement Executive (A/OPE) |
| Suite 1060, SA-15                           |
| Washington, DC 20520.                       |

(End of provision)

#### **SECTION 4 - EVALUATION FACTORS**

The Government intends to award a contract/purchase order resulting from this solicitation to the lowest priced, technically acceptable offeror/quoter who is a responsible contractor. The evaluation process shall include the following:

- (a) Award will be made to the lowest priced, acceptable, responsible offeror. The quoter shall submit a completed solicitation, including Sections 1 and 5.
- (b) The Government reserves the right to reject proposals that are unreasonably low or high in price.
- (c) The lowest price will be determined by multiplying the offered prices times the estimated quantities in "Prices - Continuation of SF-1449, block 23", and arriving at a grand total, including all options.
- (d) The Government will determine acceptability by assessing the offeror's compliance with the terms of the RFQ **to include the technical information required by Section 3.**
- (e) The Government will determine contractor responsibility by analyzing whether the apparent successful offeror complies with the requirements of FAR 9.1, including:
  - Adequate financial resources or the ability to obtain them;
  - Ability to comply with the required performance period, taking into consideration all existing commercial and governmental business commitments;
  - Satisfactory record of integrity and business ethics;
  - Necessary organization, experience, and skills or the ability to obtain them;
  - Necessary equipment and facilities or the ability to obtain them; and
  - Be otherwise qualified and eligible to receive an award under applicable laws and regulations.

## **SECTION 5 - REPRESENTATIONS AND CERTIFICATIONS**

### 52.204-90 OFFEROR IDENTIFICATION (DEVIATION JAN 2026)

If the Offeror will not have an active Federal Government contracts registration in the System for Award Management (<https://www.sam.gov>) when submitting its offer, *it shall complete paragraphs (c) and (d) of this provision and include its responses with its offer.*

(a) *Definitions.* As used in this provision—

*Commercial and Government Entity (CAGE) code* has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

*Common parent* means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

*Electronic Funds Transfer (EFT) indicator* means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

*Highest-level owner* means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

*Immediate owner* means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

*Predecessor* means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

*Taxpayer Identification Number* means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

*Unique entity identifier (UEI)* has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

(b) *Unique entity identifier (UEI).*

(1) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation “Unique Entity Identifier” followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(2) If the Offeror does not have a UEI, it shall go to <https://www.sam.gov> to obtain one. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI.

(c) *Taxpayer identification.* The Offeror shall provide with its offer the following information that is necessary to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and the implementing IRS regulations:

(1) Taxpayer identification number (TIN)

- ☐ TIN: \_\_\_\_\_;
- ☐ TIN has been applied for; or
- ☐ TIN is not required because:

- ☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;
- ☐ Offeror is an agency or instrumentality of a foreign government; or
- ☐ Offeror is an agency or instrumentality of the Federal Government.

(2) *Type of organization.*

- ☐ Sole proprietorship;
- ☐ Partnership;
- ☐ Corporate entity (not tax-exempt);
- ☐ Corporate entity (tax-exempt);
- ☐ Government entity (Federal, State, or local);
- ☐ Foreign government;
- ☐ International organization per 26 CFR 1.6049-4; or
- ☐ Other.

(3) *Common parent.*

- ☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision; or
- ☐ Name and TIN of common parent:  
Name: \_\_\_\_\_  
TIN: \_\_\_\_\_

(4) The TIN provided in paragraph (c)(1) of this provision may be matched with IRS records to verify the accuracy of the Offeror's TIN. The Government may use the TIN to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S.C. 7701(c)(3)).

(d) *Commercial and Government Entity (CAGE) code.*

(1) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its offer. The CAGE code shall be for that name and location address. Insert the word "CAGE" before the code. The Offeror may obtain a CAGE code as indicated in the following table.

| If the Offeror is... Then...                                                                                                                                | If the Offeror is... Then...                                                                                                                                                                         |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Located in the United States or its outlying areas                                                                                                          | Submit a request to the DLA CAGE Branch via <a href="https://cage.dla.mil">https://cage.dla.mil</a>                                                                                                  |
| Located outside the United States and its outlying areas and its country is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation | Contact the appropriate National Codification Bureau ( <a href="https://www.nato.int/structur/ac/135/about/contacts">https://www.nato.int/structur/ac/135/about/contacts</a> )                       |
| Located outside the United States and its outlying areas and its country is not a member of NATO or a sponsored nation                                      | Contact the NATO Support and Procurement Agency (NSPA) ( <a href="https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx">https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx</a> ) |

(2) The Offeror shall provide the CAGE code and legal business name (Do not use a “doing business as” name) for—

- (i) Its immediate owner(s), if any;
- (ii) Its highest-level owner, if any; and
- (iii) Any predecessor(s), or predecessor of an Offeror’s predecessor, that held a Federal contract or grant within the last three years.

| Owner Type          | CAGE Code | Legal Business Name |
|---------------------|-----------|---------------------|
| Immediate owner     |           |                     |
| Highest-level owner |           |                     |
| Predecessor*        |           |                     |

\* Predecessor CAGE code may be marked “Unknown.”

(3) If the Offeror has more than one immediate owner (such as a joint venture), give the information for each owner (or joint venture participant). If the Offeror has more than one predecessor, provide information for each predecessor in reverse chronological order.

(End of provision)

## 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (DEVIATION JAN 2026)

(a) *Definitions.* As used in this provision—

*Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component* have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

*Business operations* means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

*Marginalized populations of Sudan* means—

- (1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and
- (2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

*Restricted business operations* means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

*Sensitive technology*—

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—
  - (i) To restrict the free flow of unbiased information in Iran; or
  - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures.*

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders.*

- (i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.
- (ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).
- (iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

- (1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and
- (2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the

source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit. (e) *Sudan certification*. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications*.

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L.

104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx> )

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure*.

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor

- (provide manufacturer codes and distributor codes used for the product));
- (v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;
- (vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);
- (vii) Whether alternative products or services are available that would be compliant with the prohibition;
- (viii) If the product or service is related to item maintenance, include the following information on the item being maintained:
- (A) Brand;
  - (B) Model number, OEM number, manufacturer part number, or wholesaler number; and
  - (C) Item description, as applicable.
- (ix) Any readily available information about mitigation actions undertaken or recommended.
- (2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:
- (i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.
  - (ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.
- (3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.
- (h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

## 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (DEVIATION JAN 2026)

(a) *Definitions.* As used in this clause—

*American Security Drone Act-covered foreign entity* means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

*Backhaul* means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

*Covered application* means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

*Covered article*, as defined in 41 U.S.C. 4713(k), means:

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

*Covered foreign country* means The People's Republic of China.

*Covered telecommunications equipment or services* means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

*Critical technology* means—

- (1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;
- (2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—
  - (i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or
  - (ii) For reasons relating to regional stability or surreptitious listening;
- (3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);
- (4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);
- (5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or
- (6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

*FASC-prohibited unmanned aircraft system* means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

*FASCSA order* means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

- (1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

*Information technology*, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

*Intelligence community*, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

*Interconnection arrangements* means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

*Kaspersky Lab-covered article* means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

*Kaspersky Lab-covered entity* means—

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., “Kaspersky”;
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

*National security system*, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

*Roaming* means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

*Sensitive compartmented information* means classified information concerning or derived from intelligence sources,

methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

*Sensitive compartmented information system* means a national security system authorized to process or store sensitive compartmented information.

*Source* means a non-Federal supplier, or potential supplier, of products or services, at any tier.

*Subsidiary* means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

*Substantial or essential component* means any component necessary for the proper function or performance of a piece of equipment, system, or service.

*Unmanned aircraft* means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

*Unmanned aircraft system* means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

- (1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including

equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

*(2) Office of Foreign Assets Control Restrictions.*

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationalsand-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

*(3) Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

*(4) Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

*(e) Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase “FASCSA order” in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity’s possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report.*

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;

(ii) Name of the covered article or source subject to a FASCSA order;

(iii) The specific FASCSA order the product or service does not comply with;

(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of clause)

52.246-4 INSPECTION OF SERVICES-FIXED-PRICE (AUG 1996)

(a) *Definition.* "Services," as used in this clause, includes services performed, workmanship, and material furnished or utilized in the performance of services.

(b) The Contractor shall provide and maintain an inspection system acceptable to the Government covering the services under this contract. Complete records of all inspection work performed by the Contractor shall be maintained and made available to the Government during contract performance and for as long afterwards as the contract requires.

(c) The Government has the right to inspect and test all services called for by the contract, to the extent practicable at all times and places during the term of the contract. The Government shall perform inspections and tests in a manner that will not unduly delay the work.

(d) If the Government performs inspections or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish, and shall require subcontractors to furnish, at no increase in contract price, all reasonable facilities and assistance for the safe and convenient performance of these duties.

(e) If any of the services do not conform with contract requirements, the Government may require the Contractor to perform the services again in conformity with contract requirements, at no increase in contract amount. When the defects in services cannot be corrected by reperformance, the Government may-

(1) Require the Contractor to take necessary action to ensure that future performance conforms to contract requirements; and

(2) Reduce the contract price to reflect the reduced value of the services performed.

(f) If the Contractor fails to promptly perform the services again or to take the necessary action to ensure future performance in conformity with contract requirements, the Government may-

(1) By contract or otherwise, perform the services and charge to the Contractor any cost incurred by the Government that is directly related to the performance of such service; or

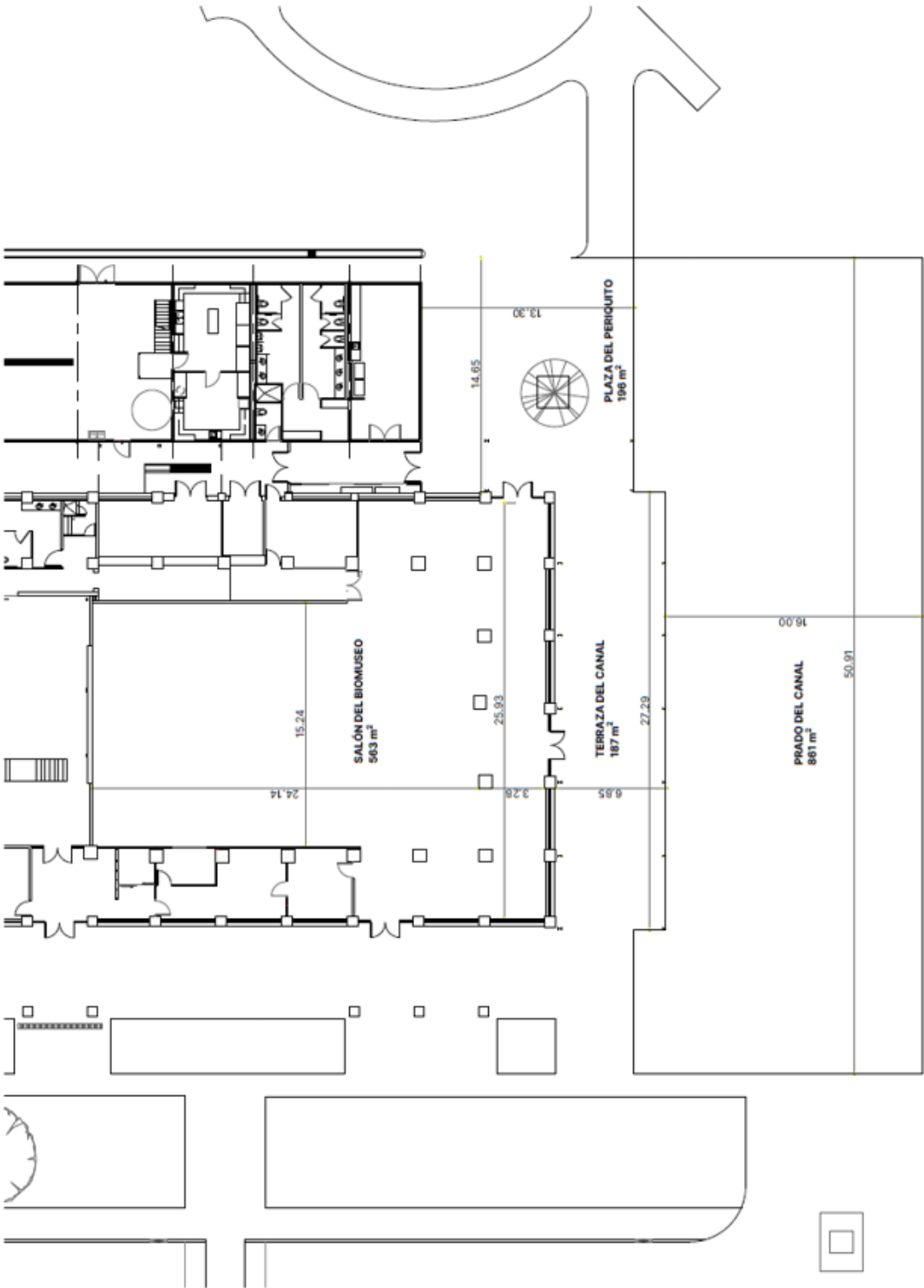
(2) Terminate the contract for default.

(End of clause)

## ATTACHMENT #1 – MAP OF VENUE SPACE



**ATTACHMENT #2 – EVENT SPACE LAYOUT**



**ATTACHMENT #3 – VISUAL REFERENCE FOR CREATIVE DECOR CONCEPT**

